

Smt. Madan Kumari @ Madan Devi vs Magaram on 21 April, 2017

Author: Pankaj Bhandari

Bench: Pankaj Bhandari

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Civil Misc. Stay Petition No. 1010/2016

IN

S.B. Civil Transfer Appl. No. 80 / 2016

Smt. Madan Kumari @ Madan Devi W/o Shri Magarma, D/o
Ramaram, Aged 26 years, By caste Jat, R/o Saiyon Ki Dhani,
Sarno Ka Tala, Village Panchayat Hodu, Tehsil Sindhari, District
Barmer, at present R/o 133, Adinath Nagar, Oswal Mahasabha, in
front of Provident Fund Office, Jodhpur (Raj.)

----Petitioner

Versus

Shri Magaram S/o Kishnaram @ Kehna, R/o Kadwasro Ki Dhani,
Nathonio Ka Was, Tehsil and District Barmer (Raj.)

----Respondent

For Petitioner(s) : Mr. Rajesh Choudhary

For Respondent(s) : Mr. C.R. Choudhary

HON'BLE MR. JUSTICE PANKAJ BHANDARI

Order 21/04/2017

1. Petitioner has preferred this application for transfer of case from Additional District Judge, Barmer to Family Court, Jodhpur.

2. It is contended by counsel for the petitioner that petitioner is a lady and it is difficult for her to go from Jodhpur to Barmer. It is also contended that petitioner has filed an application under Section 125 Cr. P.C and a petition under Section 9 of the Hindu Marriage Act at Jodhpur, wherein, the respondent is not appearing.

(2 of 3) [CTA-80/2016]

3. It is contended that the applications filed by the petitioner were dismissed in default but one of the petition has been restored to its original number.

4. Counsel for the petitioner has placed reliance on "Smt. Manju Vs. Ishwar Dan in Civil Misc. Transfer Application No. 59/2011, decided on 05.04.2012 & Smt. Pratigya Singh Vs. Shri Jaiprakash Bagotia in Civil Transfer Application No. 111/2016, decided on 09.01.2017."

5. Counsel for the respondent has opposed the transfer petition. It is contended that the parental home of the petitioner as well as the respondent is at Barmer. Respondent is a labourer. It is contended that the divorce petition was filed on 25.01.2016 and to counter blast the same petitioner has filed the petition under Section 9 of the Hindu Marriage Act and Section 125 of Cr. P.C on 28.04.2016.

6. I have considered the contentions.

7. The transfer applications are to be decided on the facts of a particular case the facts which were before the Court in the two ruling cited by the petitioners are not akin to the fact of this case. Hence, the same do not have any application to the facts of this case.

8. Both the petitioners and respondents are having their parental homes at Barmer, marriage was also solemnized at Barmer.

9. Considering the fact that the petitioner has a parental (3 of 3) [CTA-80/2016] home at Barmer, no inconvenience as such would be caused to the petitioner in attending the case at Barmer and her apprehension of there being a threat at Barmer has no foundation. No case is made out for transfer of the case from Barmer to Jodhpur.

10. In view of the above, the transfer petition is dismissed. Stay application stands disposed of.

(PANKAJ BHANDARI), J.

Amit/7